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Requesting Public Records Advocacy: AshLe' Penn - Washington County

AshLe' Penn <ashlepenn.ap3@gmail.com>
 To: yufeng.luo@pra.oregon.gov

Fri, Oct 31, 2025 at 4:54 PM

Dear Ms. Luo,

Thank you for speaking with me yesterday about Washington County's denial of my public records requests. I'm providing the documentation we discussed, but I must first alert you to what appears to be unlawful inter-agency surveillance and information sharing about me as the requester, which Washington County has used to justify denying access to public records—all without any notice or due process regarding the effect on my legal rights.

CRITICAL ISSUE: Apparent Unlawful Government Surveillance and Information Sharing**The Evidence of Improper Surveillance:**

HR Manager Aaron Mendes denied my fee waiver, stating explicitly that I intend to use the requested records to benefit someone in particular (see attached invoice email). I never made any such statement in my records requests. This means Washington County agencies have been:

1. Gathering and maintaining information about my associations, intentions, or activities outside the records request process
2. Sharing this information between agencies (HR, DA's office, possibly others) to coordinate denial of my requests
3. Using this surveillance to affect my legal rights—specifically, my statutory right to access public records
4. Doing so without any notice to me or opportunity to challenge the accuracy or use of this information

Why This Violates ORS 181A.250:

HR is not a law enforcement agency. HR's legitimate business operations involve personnel management, benefits administration, and employment matters—not monitoring public records requesters' associations with convicted persons or involvement in criminal cases.

The nature of the information HR is citing—my relationship to a criminal case and a convicted person—falls squarely outside any conceivable HR function. This information must have come from a law enforcement agency.

ORS 181A.250 provides:

"No law enforcement agency... may collect or maintain information about the political, religious or social views, associations or activities of any individual... unless such information directly relates to an investigation of criminal activities, and there are reasonable grounds to suspect the subject of the information is or may be involved in criminal conduct."

Here's the logical conundrum that reasonably associates the collection of this information to have been executed through unlawful conduct:

If a law enforcement agency lawfully collected this information under ORS 181A.250 (because it relates to a criminal investigation), then these would be law enforcement investigative records governed by ORS 192.355(3), and the County could not charge me \$7,846.60 in standard public records fees.

But the County IS charging me standard public records fees, which proves this information is NOT tied to any lawful criminal investigation under ORS 181A.250.

Therefore, a law enforcement agency has unlawfully collected and is maintaining information about my associations in violation of ORS 181A.250—information that was then shared with HR, an agency that has no legitimate basis to possess or use such information.

This constitutes unlawful surveillance and inter-agency information sharing that violates:

- ORS 181A.250 (prohibition on law enforcement collecting/maintaining information about associations absent criminal investigation grounds)
- Oregon Constitution Article I, Section 9 (privacy protections against unreasonable government information gathering)
- ORS 646A.600 et seq. (Oregon Consumer Privacy Act restrictions on collection and sharing of personal information)
- Due Process (affecting legal rights without notice or opportunity to be heard)
- AG Manual at 21: "*The identity of the requester and the circumstances surrounding the request are irrelevant to whether the information fits within the category of the exemption.*"

The Contradiction:

The DA's office denied my appeal claiming there is "*no controversy*" regarding Barry Washington's supervision and "*insufficient public interest*" (see attached DA opinion, p. 4). Yet if that were true, why are law enforcement agencies collecting and maintaining information about my associations, and why is that information being shared with HR to deny my access to public records?

This reveals inter-agency coordination to deny records based on who I am and what the County speculates I'll do with the records—achieved through what appears to be unlawful surveillance in violation of ORS 181A.250, followed by unlawful sharing with agencies that have no business possessing such information, all of which has directly impaired my legal rights without any semblance of due process.

SUBSTANTIVE LEGAL ERRORS IN DA'S OCTOBER 31 DENIAL

I've reviewed DA Barton's opinion denying my appeal. It contains at least five fundamental legal errors:

Error #1: Conflating "Personal Interest" with Lack of "Public Interest"

What the DA Says:

"While these records are undoubtedly of great interest and significance to petitioner, we find that disclosure overwhelmingly serves the petitioner's private interest." (p. 4)

Why This Is Wrong:

- The DA concedes the records are "of great interest and significance"—which under the AG Manual's framework supports disclosure, not denial
- The AG Manual nowhere requires that requesters be devoid of personal interest before public interest can exist
- In fact, personal interest and public interest frequently overlap—and the statute contemplates this
- Public interest is analyzed by asking whether disclosure serves "the community or society as a whole"—not whether the requester happens to also benefit (AG Manual at 23)
- This logic would eliminate oversight by anyone affected by government action: Crime victims couldn't oversee offender supervision. Laid-off employees couldn't examine termination processes. Patients couldn't investigate medical board decisions.
- The DA's interpretation would render ORS 147.417 (victim rights to offender information) and similar statutory access provisions meaningless

Correct Standard:

Does disclosure primarily benefit the public? Yes—transparency in how the government supervises convicted offenders and is accountable to the victim population it serves (notably, part of community corrections mission), manages personnel decisions, and handles layoffs serves the community as a whole, regardless of whether the requester may also have a personal stake (and considering that if the requestor is domiciled in Oregon, the argument that a requestor may benefit from disclosure could defeat nearly every request for a fee waiver or waiver of an exemption because the requestor belongs to "the public" as a whole).

Error #2: Misapplying Case Law on Party/Litigant Status**What the DA Says:**

Cites *DeMartino* (requester sought records about court case he was party to) and *Madrid* (tort claimant seeking information about own tort claim) for the proposition that my requests lack public interest. (p. 4)

Why This Is Wrong:

- I'm not seeking records about my own case—I'm seeking records about how government performed its supervision duties, managed communications, and made layoff decisions
- *DeMartino* and *Madrid* involved requesters seeking discovery-type information about their own litigation
- Here, I'm seeking government accountability records: How did Community Corrections supervise Washington? What communications occurred? Why were employees laid off? These are quintessential transparency questions
- The DA's logic would bar any crime victim from ever requesting supervision records, gutting ORS 147.417 (victim rights to offender information)

Correct Analysis:

These cases don't apply. I'm seeking oversight of government operations (all established to be encompassed in the public's interest by the Attorney General), not discovery for my own case.

Error #3: Requiring "Media Attention" and "Public Complaints" Before Finding Public Interest**What the DA Says:**

"Nothing about the requested records has garnered any media attention and we are not aware of any public complaints of misconduct involving Mr. Washington's supervision or Community Corrections layoffs." (p. 4)

Why This Is Wrong:

- This requirement appears nowhere in ORS 192.324(5) or the AG Manual
- It creates a catch-22: Records can't be accessed to expose problems unless problems are already publicly known
- It contradicts the entire purpose of transparency law—to allow the public to learn what government is doing
- The AG Manual explicitly states public interest includes "*the right of the public to monitor what officials are doing on the job*"—before misconduct is proven

Correct Standard:

Government accountability and victim rights are matters of inherent public interest. Media *attention* is irrelevant while still affirming that I demonstrated my ability to disseminate.

Error #4: Requiring Proof of "Meaningful Dissemination Ability"**What the DA Says:**

"Here, petitioner has articulated no meaningful ability to disseminate the requested materials. An expressed future intent to turn the records over to the media or advocacy organizations does not demonstrate an ability to 'meaningfully disseminate' for the purpose of a fee waiver." (p. 4)

Why This Is Wrong:

- Creates an unconstitutional "media credentials" test not found in statute
- Violates *Citizens United* principle that First Amendment protects speech regardless of speaker identity
- The AG Manual nowhere requires proof of distribution infrastructure
- I explicitly stated intent to disseminate via social media, community presentations, and provision to media—this IS dissemination
- The DA's test would limit fee waivers only to established media organizations, defeating the democratic purpose of public records law

Correct Standard:

Commitment to make records publicly available (which I demonstrated) satisfies any dissemination concern.

Error #5: Ignoring the Court Order and Statutory Mandates for Victim Access**Critical Omission:**

The DA's opinion never addresses that the judgment of conviction contains a court order requiring Washington to "*waive any confidentiality or privilege necessary in order to allow treatment providers or supervising officer to communicate with victim.*" (Judgment, p. 2)

Why This Matters:

- Crime victims are a statutorily protected class with independent access rights under ORS 147.417 and 18 U.S.C. § 3771
- These statutes mandate a different analysis than the general public interest test—they create categorical entitlements
- Charging me \$181.78 in "redaction fees" for records the court ordered to be disclosed creates an unconstitutional financial barrier to court-ordered access
- This implicates:
 - Victim rights (ORS 147.417; 18 U.S.C. § 3771)
 - Due process (barrier to enforcing court orders)
 - Judicial supremacy (executive branch frustrating court order via fees)

Required Analysis:

When a court orders disclosure to a victim, and when statutory mandates provide independent access rights, the fee waiver analysis must account for these special circumstances. The DA never conducted this analysis.

THE DA'S ANALYSIS VIOLATES AG MANUAL'S "CASE-BY-CASE" REQUIREMENT

Most critically: The DA fails to analyze each category of requested records separately. The opinion treats three distinct record categories—(1) CHRONOS supervision logs, (2) staff communications about supervision and transfers, and (3) personnel layoff records—as a single undifferentiated request. This violates the AG Manual's explicit "case-by-case" requirement.

What This Proves:

- No individualized assessment of public interest in each record type

- Blanket denial based on requester identity rather than record content
- Pretextual reasoning (personnel layoff records cannot possibly "assist" Washington in his criminal case)
- Lack of good faith in applying statutory standards

The DA concedes the records are "of great interest and significance" but then denies access anyway—suggesting the real basis for denial is who I am, not what the records contain.

WHAT'S ACTUALLY AT STAKE IN EACH RECORD CATEGORY

The DA's failure to analyze each request separately obscures what each record type reveals about government operations:

CHRONOS Supervision Records:

If victims can be priced out of oversight, community corrections operates without accountability to those most affected by supervision failures.

Staff Communications Re: Supervision/Transfer:

If internal communications about offender management remain hidden, the public cannot assess whether supervision decisions prioritize safety or convenience.

Personnel Layoff Records:

If government can conceal the rationale for eliminating public safety positions, taxpayers cannot evaluate whether cuts serve fiscal responsibility or other interests.

Each record category serves distinct, compelling public interests—none of which the DA meaningfully analyzed.

THE LARGER PATTERN

This case appears less about legitimate fee waiver analysis and more about limiting access to avoid scrutiny of decisions the County would prefer remain opaque. When government:

- Unlawfully collects and maintains information about requesters' associations in violation of ORS 181A.250
- Shares that information with agencies (like HR) that have no legitimate basis to possess or use it
- Applies identical denials to factually distinct requests
- Ignores court orders and statutory mandates
- Creates tests (media attention, dissemination ability) found nowhere in law

...it suggests an institutional effort to manage liability exposure rather than faithfully execute transparency obligations.

The public records law exists precisely to prevent this—to ensure that government discomfort with scrutiny cannot override the public's right to know.

MOVING FORWARD

As you mentioned during our conversation, communication from your office to the County noting these legal errors would be greatly appreciated and may help clarify the proper application of Oregon's public records statutes for myself or the agency if I hold any misconceptions about what's been stated here. Importantly, such clarification may obviate the need to divert limited circuit court resources to what appears, on its face, to be a denial premised on unlawful surveillance in violation of ORS 181A.250, considerations extraneous to statutory requirements, view-point discrimination, what the statutes construe to be tampering with public records (through unlawful withholding) and also actions potentially contrary to valid court orders or established safeguards against misuse of personal information.

This matter raises questions not merely about access to specific documents, but about whether local government may:

- Unlawfully collect and maintain information about public records requesters' associations with no criminal investigation grounds under ORS 181A.250
- Share that information with agencies that have no legitimate operational basis to possess it
- Use that information to deny access to public records
- Impose requirements—requestor identity screening, proof of media credentials, pre-existing public controversy—that exist nowhere in the statutory framework

If permitted, such practices would fundamentally undermine the transparency the Legislature mandated.

I am prepared to file in circuit court if necessary, but welcome any perspective you can offer regarding whether the County's analysis reflects a misunderstanding of controlling law, or if I am somehow mistaken as to my rights as a requestor, but that your office's guidance might address.

ATTACHED DOCUMENTATION

- DA's October 31, 2025 denial opinion (received today)
- My October 17 appeal to the DA
- Judgment of conviction with court order (Case #21CR25804)
- All public records requests and agency responses
- HR fee waiver denial referencing my alleged "intentions" and associations
- Timeline summary

Thank you for your time and for the work your office does to uphold Oregon's commitment to government transparency.

[Timeline](#)

09/07/2021	Judgment of Conviction is entered against Barry Trenell Washington.	Case No. 21CR25804
08/10/2021	Ashle Penn submits a Victim's Rights Request Form.	DA Case #398994
05/12/2025	Public records request for warrant affidavits is submitted.	C008180-051225
05/15/2025	Public records request for Community Corrections communications is submitted.	C008202-051525
07/09/2025	Fee waivers are denied for the warrant affidavits and Community Corrections communications requests.	C008180-051225, C008202-051525
08/14/2025	Public records request for CHRONOS supervision records is submitted.	C008643-081425
08/23/2025	Public records request for layoff records is submitted.	C008691-082325
09/19/2025	Fee waiver is denied for the layoff records request.	C008691-082325
09/19/2025	The layoff records request is denied in its entirety, citing statutory exemptions.	C008691-082325
09/23/2025	Fee waiver is denied for the CHRONOS supervision records request.	C008643-081425
10/06/2025	Follow-up records request is submitted for "evidence" cited by the County in a previous denial.	C008906-100625
10/17/2025	An appeal of the fee waiver denials and exemption claim is submitted to the Washington County District Attorney.	N/A
10/22/2025	The District Attorney's office acknowledges receipt of the appeal and proposes a decision date.	N/A
10/23/2025	The petitioner responds to the DA's office, requesting adherence to the seven-day statutory deadline for a decision.	N/A
10/28/2025	The District Attorney's office informs the petitioner that a written opinion will be issued by October 31 due to County delays.	N/A

On 10/28/2025, Washington County HR Department reached out to me via the public records portal with the following message:

Messages 4

 Print Messages (PDF)

✓  On 10/28/2025 11:52:47 AM, Washington County Public Records Center wrote:

Subject: [Records Center] County :: C008906-100625

Body:

RE: PUBLIC RECORDS REQUEST of October 06, 2025, Reference # C008906-100625

Dear Ashle Penn,

In reference to your records request, we require additional time to respond.

This is because:

- the staff necessary to complete a response to the public records request are unavailable (ORS 192.329(6)).
- this request will impede the public body's ability to perform other necessary services (ORS 192.329(6)).
- of the volume of public records requests being simultaneously processed (ORS 192.329(6)).

Accordingly, we estimate that by 12/5/2025, we will be able to provide you with an estimate of the cost to gather and produce responsive records.

Thank you for your patience in awaiting this information.

Sincerely,

Aaron Mendes

Human Resources

After receiving this message, it was particularly odd to also, just this morning, receive this message from the HR Department as well, but this message does not appear in the public records portal as they normally do, and it only came into my email:

[Records Center] County :: C008691-082325 [Inbox x](#)Washington County Public Records Center
to me

11:13 AM (2 hours ago) ☆ ☺ ↶ ⋮

Attachments:

[INV25-C008691-3.pdf](#)

RE: PUBLIC RECORDS REQUEST of August 23, 2025, Reference # C008691-082325

Dear Ashle Penn,

Pursuant to ORS 192.324(4), a public body may charge reasonable fees to cover the actual cost of making public records available. There is a cost associated with gathering and providing the records you have requested and I have attached your estimate to this email.

Please reply to this email if you accept these estimated charges for an official invoice.

If you accept these estimated charges, have any questions about this response, would like to re-phrase or adjust the request, would like to request a fee waiver, or would like to make a payment for the charges mentioned in this message above, please contact the Washington County, OR by any of the following methods:

- by responding to this email
- by regular mail to Washington County, OR, ATTN Aaron Mendes, ,
- in person at Washington County, OR, ,

Please note that no work will be undertaken until we receive your confirmation and payment as provided by ORS 192.324(4). If you fail to pay the fee within 60 days of this date, the County will close this public records request. More information about applicable fees can be found in the Washington County Fee Schedule.

County policy authorizes only the County Administrator or designee to reduce or waive fees if making the requested records available primarily benefits the general public. The law prohibits waiving fees if the records were created through use of certain constitutionally dedicated funds, such as fuel taxes or motor vehicle fees, unless the cost of charging the fee would exceed the cost of providing the record.

So, while I recognize that a public body does have discretion to waive fees, and also acknowledging such authority, determining whether the public interest requires disclosure of a particular record is a two-step process. First, the public body should determine what the competing interests are in disclosure and nondisclosure, as well as the significance of those interests. This involves looking to the exemption at issue and any case-specific facts, including the records themselves. Second, the public body should weigh those interests and determine which one predominates, with the presumption in favor of disclosure. The public interest typically does not depend on the requester's private interests, or on protecting public bodies from embarrassment or scrutiny.

Respectfully,

AshLe' Penn
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24 attachments

- INV25-C008691-3.pdf**
78K
- District Attorney Opinion 10-31-2025.pdf**
327K
- wc_records_request.communication.pdf**
271K
- wc_records_request (1).pdf**
271K
- CCCommunications.WC Records Request C008202-051525_Community Corrections (1).pdf**
303K
- Invoice_INV24-S028695-1.pdf**
71K
- WC Records Request C008643-081425_Court Ordered Access.pdf**
320K
- WC Records Request C008691-082325_Layoff Requests.pdf**
271K
- Quick-Reference-Guide-What-You-Can-Release.pdf**
97K
- Victim_Rights_Initial_Notif_Tuesday_Jul_27_2021_at_123755_PMdocm.pdf**
175K
- Response to Sabina Khachaturova 10.23.25.pdf**
85K
- Response to Sabina Khachaturova.pdf**
122K
- Sabina Khachaturova Quote Response By 10.31.25.pdf**
86K
- Sabina Khachaturova 10.23.25.pdf**
88K
- Sabina.Khachaturova- DA acknowledgment.pdf**
237K
- Records Appeal DA.pdf**
201K

-  **Evidence Requested C008906-100625_Message_History.pdf**
239K
-  **Barry Washington Judgment.pdf**
52K
-  **Communications.Invoice_INV25-C008202-1.pdf**
83K
-  **Layoff Requests (1)_WC Records Request C008691-082325_.pdf**
271K
-  **Sworn Affidavit Invoice_INV25-C008180-1.pdf**
60K
-  **Sworn Affidavits.Warrants . WC Records Request C008180-051225.pdf**
324K
-  **CHRONOS.Invoice_INV25-C008643-1.pdf**
59K
-  **CHRONOS Records.WC Records Request C008643-081425_Court Ordered Access (1).pdf**
320K